

TERMS AND CONDITIONS FOR

SALE OF GOLD ARTICLES

(Electronic Acceptance via Aadhaar-OTP e-KYC)

Version 2026 | Effective Date: _____

Applicable to All Nine (9) Outlets in Ranchi, Jharkhand

PREAMBLE

These Terms and Conditions (hereinafter referred to as the "Agreement") govern every transaction in which an individual (the "Seller") offers gold articles for purchase to the Shop at any of its outlets. The Shop is engaged in the lawful business of purchasing pre-owned gold jewellery, ornaments, and other gold articles from members of the public.

Given the nature of this business — which involves purchasing gold from persons who may be strangers to the Shop — the Shop has adopted a rigorous electronic verification and documentation protocol to ensure that all transactions are lawful, transparent, and fully compliant with applicable Indian law. A cornerstone of this protocol is Aadhaar-OTP based e-KYC, which serves as the Seller's authenticated electronic signature and confirmation of identity.

By clicking "I Agree" and completing the Aadhaar-OTP authentication on the Shop's platform, the Seller unconditionally accepts all terms, declarations, representations, indemnities, and obligations set out in this Agreement. This electronic acceptance constitutes a legally valid and binding contract under the Indian Contract Act, 1872, the Information Technology Act, 2000 (including Section 10A thereof), the Aadhaar Act, 2016, and the Bharatiya Sakshya Adhiniyam, 2023.

CLAUSE 1 — DEFINITIONS AND INTERPRETATION

In this Agreement, unless the context otherwise requires, the following expressions shall have the meanings assigned to them below:

"Agreement"	These Terms and Conditions together with the Seller's Aadhaar-OTP digital acceptance, the Sworn Affidavit/Declaration, and the KYC records, collectively constituting the binding contract for every gold purchase transaction.
"Shop" / "Purchaser"	The gold purchase establishment operating under its registered trade name and its all outlets in Jharkhand, including its owners, managers, authorised employees, agents, and successors.
"Seller" / "You"	The individual who presents gold articles for sale at any outlet of the Shop, completes Aadhaar-OTP e-verification, and clicks 'I Agree' to accept this Agreement.
"Gold Articles"	All gold ornaments, jewellery, bullion, coins, bars, and any other gold items of any weight, form, or purity offered for sale by the Seller under this Agreement.

"Aadhaar-OTP Verification" / "e-KYC"	The electronic identity verification process mandated by the Shop, wherein the Seller authenticates their identity by entering a One-Time Password (OTP) received on the Aadhaar-registered mobile number, in accordance with the Aadhaar Act, 2016.
"Transaction"	The complete process of sale of Gold Articles by the Seller to the Shop, encompassing identity verification, documentation, physical assessment of gold, payment, and execution of this Agreement.
"Business Day"	Any day other than a Sunday or public holiday declared under applicable law in the State of Jharkhand.

1.2 References to any statute, enactment, or law shall include all amendments, re-enactments, and subordinate legislation made thereunder from time to time. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa.

CLAUSE 2 — SELLER ELIGIBILITY AND CAPACITY

2.1 The Seller represents, warrants, and confirms that, as of the date of entering into this Agreement and at the time of each Transaction:

- The Seller is a natural person, citizen of India, and is above eighteen (18) years of age.
- The Seller is of sound mind and has not been declared to be of unsound mind by any court of competent jurisdiction.
- The Seller is not a minor, and no guardian or parent is required to consent to or ratify this Agreement.
- The Seller is entering into this Transaction freely, voluntarily, without any duress, undue influence, coercion, or misrepresentation.
- The Seller's Aadhaar details and all personal information provided are accurate, current, and complete.
- The Seller is not subject to any order, injunction, or directive of any court, authority, or tribunal that would restrict or prohibit the sale of personal property.

2.2 The Shop reserves the right to refuse any Transaction if the Seller fails to complete Aadhaar-OTP verification or if there are reasonable grounds to doubt the Seller's eligibility, capacity, or identity.

CLAUSE 3 — DECLARATION OF LAWFUL OWNERSHIP

3.1 The Seller solemnly declares, represents, and warrants that, in respect of each and every Gold Article offered for sale under this Agreement:

- The Seller is the true, lawful, absolute, and sole owner of the Gold Articles with full and unencumbered right, title, and authority to sell them.
- The Gold Articles were acquired by the Seller through entirely lawful means, including but not limited to self-purchase, ancestral property, inheritance, testamentary bequest, gift (including stridhan), savings, or through any other legally recognised mode of acquisition.
- The Gold Articles are not stolen, misappropriated, extorted, fraudulently obtained, or the proceeds of any unlawful activity whatsoever.

- The Gold Articles are free from all encumbrances, mortgages, pledges, hypothecations, charges, attachments, court orders, injunctions, and any third-party claims, rights, interests, or liens of any nature.
- No dispute, litigation, or legal proceeding is pending or threatened before any court, tribunal, arbitral body, or authority in respect of the Gold Articles.
- The Seller is not presently accused of or under investigation for any offence relating to theft, robbery, dacoity, fraud, cheating, misappropriation, criminal breach of trust, extortion, or any property-related offence under any law.
- The Seller has not been previously convicted of any offence of a nature that would cast doubt on the Seller's title to the Gold Articles.

3.2 The Seller acknowledges that the above declarations are the primary basis upon which the Shop has agreed to enter into the Transaction, and that the Shop would not have done so absent such declarations.

3.3 The Seller understands that the above declarations may be verified by the Shop, law enforcement agencies, or any judicial authority, and that any false declaration exposes the Seller to criminal prosecution.

CLAUSE 4 — ACKNOWLEDGMENT OF NON-AVAILABILITY OF PURCHASE INVOICE

4.1 The Seller acknowledges that, in the case of gold jewellery and ornaments that are old, inherited, received as gift or stridhan, or have been in the family for an extended period, the original purchase invoice or bill of sale may not be available, and that the absence of such invoice is a common and recognised occurrence in the trade and in domestic ownership of gold in India.

4.2 The Seller further acknowledges and declares that:

- Under applicable Indian law, a private individual is not legally required to produce a purchase invoice as a prerequisite to selling personal movable property.
- The non-availability of the original purchase invoice does not, by itself, affect the Seller's lawful title to the Gold Articles.
- In lieu of an invoice, the Seller has executed a sworn Affidavit/Declaration (separately) setting out the nature of the Seller's ownership, which together with this Agreement constitutes sufficient documentation of the Seller's title.

4.3 In the event that any statutory authority, law enforcement agency, income tax department, or court raises any inquiry or demand in relation to the Gold Articles or the absence of an invoice, the Seller shall assume sole and complete personal responsibility for such inquiry and shall fully indemnify the Shop in the manner set out in Clause 8 of this Agreement.

CLAUSE 5 — AADHAAR e-KYC VERIFICATION AND ELECTRONIC EXECUTION

5.1 The Shop has implemented a mandatory Aadhaar-OTP based electronic Know Your Customer (e-KYC) verification process for all Sellers. This process is designed to ensure compliance with anti-money laundering norms, verify identity, and create an authenticated electronic record of every Transaction.

5.2 The Seller hereby acknowledges and confirms that:

- The Seller has voluntarily submitted their Aadhaar number and consented to Aadhaar-based identity verification in accordance with the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016.
- The OTP received on the Aadhaar-registered mobile number of the Seller was entered personally by the Seller, and not by any other person on the Seller's behalf without the Seller's knowledge.
- The Seller's act of entering the OTP and clicking "I Agree" constitutes the Seller's valid and authenticated electronic signature for the purposes of this Agreement, within the meaning of Section 2(1)(p) and Section 5 of the Information Technology Act, 2000.
- The Seller has not permitted any third party to use the Seller's Aadhaar credentials or OTP in connection with this Transaction.
- The Seller will not challenge the validity, authenticity, or binding nature of this Agreement on the ground that it was executed electronically or that no physical stamp paper was used.

5.3 The digital record created at the time of the Seller's e-KYC verification, including OTP logs, timestamps, device information, IP address, and photographs, shall constitute primary evidence of the Seller's identity and consent within the meaning of the Bharatiya Sakshya Adhiniyam, 2023, and shall be admissible in any legal or quasi-legal proceeding.

5.4 In addition to Aadhaar verification, the Seller shall present:

- Original Aadhaar Card
- Original PAN Card (mandatory for transactions attracting reporting obligations)
- A current photograph, to be taken at the outlet at the time of the Transaction
- Any additional identity or address proof that the Shop may reasonably require

5.5 The Shop shall retain photocopies of all KYC documents, signed and authenticated by the Seller, for a minimum period of five (5) years from the date of the Transaction.

CLAUSE 6 — CRIMINAL LIABILITIES — DISCLOSURE AND ACKNOWLEDGMENT

6.1 The Shop hereby explicitly draws the Seller's attention to the serious criminal consequences of selling stolen, misappropriated, or unlawfully obtained gold under Indian penal law. The Seller acknowledges having read, understood, and been made fully aware of the following provisions:

Provision	Offence	Penalty
Section 303 BNS, 2023	Theft	Imprisonment up to 3–7 years + fine
Section 305 BNS, 2023	Theft with preparation to cause death, hurt or restraint	Imprisonment up to 10 years + fine
Section 314 BNS, 2023	Dishonest misappropriation of property	Imprisonment up to 2 years + fine
Section 316 BNS, 2023	Criminal breach of trust	Imprisonment up to 7 years + fine

Section 317 BNS, 2023	Receiving / retaining stolen property	Imprisonment up to 3 years + fine
Section 318 BNS, 2023	Cheating / cheating by personation	Imprisonment up to 7 years + fine
Section 229 BNS, 2023	Giving false evidence / making false declaration	Imprisonment up to 7 years + fine
PMLA, 2002	Money laundering / proceeds of crime	Rigorous imprisonment 3–10 years + attachment of property

6.2 The Seller further acknowledges that the foregoing list is illustrative and not exhaustive, and that other provisions of applicable law may impose additional civil or criminal liability depending on the facts and circumstances of any particular case.

6.3 The Seller acknowledges that criminal liability under the above provisions may arise independently of the Seller's intention, and that even an innocent-seeming transaction involving stolen property may attract penal consequences.

6.4 The Seller has been given adequate opportunity to seek independent legal advice before signing this Agreement and has done so or has voluntarily chosen not to.

CLAUSE 7 — LIABILITY FOR FALSE DECLARATIONS

7.1 The Seller acknowledges and is fully aware that providing any false, misleading, or fabricated information, representation, or declaration in connection with this Agreement, the KYC process, or any document submitted to the Shop constitutes a serious criminal offence under Indian law, including:

- Section 229, Bharatiya Nyaya Sanhita, 2023 — Giving false evidence (imprisonment up to 7 years and fine)
- Section 230, Bharatiya Nyaya Sanhita, 2023 — Fabricating false evidence (imprisonment up to 7 years and fine)
- Section 318, Bharatiya Nyaya Sanhita, 2023 — Cheating (imprisonment up to 7 years and fine)
- Section 336, Bharatiya Nyaya Sanhita, 2023 — Forgery (imprisonment up to 2 years and fine, or more for specific types of forgery)

7.2 The Seller understands that this Agreement, together with the Aadhaar-OTP verification records and the sworn Affidavit, may be produced before any police authority, investigating agency, income tax authority, enforcement directorate, or court of competent jurisdiction as evidence of the Seller's declarations and admissions.

7.3 Any misrepresentation by the Seller shall also entitle the Shop to take civil action for recovery of all losses, damages, and costs suffered as a result of such misrepresentation, in addition to any criminal complaint.

CLAUSE 8 — INDEMNITY AND HOLD HARMLESS

8.1 The Seller hereby irrevocably, unconditionally, and perpetually undertakes to indemnify,

defend, and hold harmless the Shop, its owners, partners, directors, managers, employees, staff, agents, legal representatives, and successors (collectively, the "Indemnified Parties") from and against any and all of the following arising out of or in connection with this Agreement or the Gold Articles:

- Any police action, FIR, complaint, seizure, attachment, or confiscation of the Gold Articles by any law enforcement authority on the ground that such articles are stolen, misappropriated, or otherwise unlawfully obtained.
- Any civil suit, claim, demand, or legal proceeding filed or threatened by any third party claiming ownership of or interest in the Gold Articles.
- Any investigation, show cause notice, or penalty imposed by any tax authority, enforcement directorate, financial intelligence unit, or any other regulatory authority in connection with the Gold Articles or this Transaction.
- Any loss, damage, cost, expense (including legal fees and court costs), or reputational harm suffered by the Indemnified Parties as a direct or indirect result of any false declaration, misrepresentation, or breach by the Seller.
- Any liability arising under the Prevention of Money Laundering Act, 2002, or under any anti-money laundering or anti-terrorism financing law, due to the acts or omissions of the Seller.

8.2 This indemnity obligation shall:

- Arise immediately upon the occurrence of any of the events described in Clause 8.1.
- Survive the completion, cancellation, or termination of any Transaction and continue indefinitely.
- Not be extinguished or diminished by any partial payment, settlement, or the passage of time.
- Extend to all sums that the Indemnified Parties are compelled or required to pay under a court order, arbitral award, settlement, or compromise.

8.3 Without prejudice to the foregoing, the Seller shall, upon demand by the Shop, promptly reimburse the Shop for all legal fees, advocate charges, and out-of-pocket expenses incurred in responding to or defending any claim, action, or proceeding arising from the Gold Articles.

CLAUSE 9 — SHOP'S BONA FIDE PURCHASE AND GOOD FAITH

9.1 The Seller expressly acknowledges and irrevocably admits that:

- The Shop has acted entirely in good faith in entering into the Transaction and has taken all reasonable and legally mandated precautions, including Aadhaar-OTP e-KYC verification, obtaining a sworn affidavit, conducting a physical inspection of the Gold Articles, and maintaining CCTV recording of the Transaction.
- At the time of the Transaction, the Shop did not have actual knowledge of, nor any reasonable cause to suspect, any defect in the Seller's title to the Gold Articles or any unlawful origin thereof.
- The Shop has purchased the Gold Articles openly, transparently, and in the ordinary course of business.
- The Shop has paid lawful and fair consideration for the Gold Articles, in the form of cash or

bank transfer, as recorded in the Transaction documents.

- The Shop qualifies as a bona fide purchaser for value without notice, and is entitled to all protections available to such purchasers under Indian law.

9.2 The Seller unconditionally undertakes not to contradict, retract, or resile from any of the acknowledgments contained in Clause 9.1 in any future legal, quasi-legal, or administrative proceeding.

9.3 The Seller acknowledges that the Shop may produce this Agreement, the Aadhaar-OTP records, and all associated documents as evidence of its good faith, bona fide conduct, and compliance with due diligence requirements in any proceeding.

CLAUSE 10 — ANTI-MONEY LAUNDERING AND REGULATORY COMPLIANCE

10.1 The Seller hereby expressly declares that:

- The Gold Articles do not constitute proceeds of crime, as defined under Section 2(1)(u) of the Prevention of Money Laundering Act, 2002 (PMLA).
- This Transaction is not being used or intended to be used as a means to launder money, conceal the origin of funds, or facilitate any other offence under PMLA or any other applicable law.
- The Seller is not included in any list of Specially Designated Nationals, sanctioned entities, or persons subject to asset freezing orders under Indian law or international sanctions applicable in India.

10.2 The Seller consents to the Shop:

- Maintaining comprehensive KYC records, including the Seller's Aadhaar and PAN details, in accordance with the Prevention of Money Laundering (Maintenance of Records) Rules, 2005, and applicable PMLA obligations.
- Reporting any suspicious transaction or cash transaction above prescribed thresholds to the Financial Intelligence Unit — India (FIU-IND) or any other authority as required by law.
- Sharing the Seller's details with any law enforcement or regulatory authority upon receipt of a lawful request, summons, or court order.

10.3 The Seller acknowledges that the Shop is a Reporting Entity as may be applicable under PMLA and is bound by statutory reporting obligations, and that compliance with such obligations does not constitute a breach of any duty of confidentiality owed to the Seller.

CLAUSE 11 — DATA PRIVACY AND PROTECTION

11.1 The Seller's personal data, including Aadhaar number, PAN, address, photograph, biometric data, and contact information, is collected by the Shop solely for the purposes of:

- Identity verification and KYC compliance
- Execution and enforcement of this Agreement
- Compliance with regulatory reporting obligations under PMLA, income tax law, and other applicable statutes
- Responding to lawful requests from law enforcement or judicial authorities

11.2 The Shop undertakes to process the Seller's personal data in compliance with the Aadhaar Act,

2016, the Information Technology Act, 2000, and the Digital Personal Data Protection Act, 2023, as applicable from time to time.

11.3 The Seller's Aadhaar data will not be shared with any private third party for commercial purposes and will not be used for any purpose other than those set out in Clause 11.1 above.

11.4 The Seller consents to the storage and processing of their personal data for a minimum period of five (5) years from the date of the Transaction, or such longer period as may be required by applicable law.

CLAUSE 12 — COOPERATION WITH AUTHORITIES

12.1 The Seller irrevocably undertakes to provide full, prompt, and unconditional cooperation in any police inquiry, investigation, prosecution, or legal proceeding that may arise in connection with the Gold Articles, including:

- Appearing before any police station, investigating officer, enforcement directorate, income tax authority, or court, whenever summoned or required to do so.
- Providing truthful testimony, statements, and evidence to all authorities.
- Complying with all summons, notices, orders, warrants, or any other legal process issued in connection with the Gold Articles or this Transaction.
- Assisting the Shop in its defence in any legal proceeding related to the Gold Articles.

12.2 The Seller acknowledges that failure to cooperate with authorities as required under this clause shall constitute a separate and independent breach of this Agreement and may independently attract criminal liability under applicable law, including for abetment, obstruction of justice, or non-compliance with legal process.

12.3 The Seller shall promptly inform the Shop of any inquiry, summons, or legal notice received by the Seller from any authority in connection with the Gold Articles, within forty-eight (48) hours of receipt thereof.

CLAUSE 13 — TRANSACTION RECORDS AND AUDIT TRAIL

13.1 A complete and tamper-evident record of each Transaction shall be created and maintained by the Shop, comprising:

- Aadhaar-OTP verification logs with timestamp, IP address, and device identifier
- Seller's photograph taken at the outlet on the date of Transaction
- Photographs of the Gold Articles sold
- Weight and purity test records
- Signed copy of this Agreement and the Seller's Affidavit
- Photocopies of KYC documents signed by the Seller
- Entry in the Daily Purchase Register
- Mode of payment details (cash / bank transfer reference)
- CCTV footage of the Transaction

13.2 The Shop shall retain all Transaction records for a minimum period of five (5) years from the

date of the Transaction. CCTV footage shall be preserved for a minimum of ninety (90) days.

13.3 The Seller acknowledges that the above records may be produced in evidence before any court, tribunal, or authority and that the Seller has consented to their creation and retention.

CLAUSE 14 — PAYMENT AND PRICE

14.1 The purchase price for the Gold Articles shall be determined by the Shop based on the prevailing market rate for gold on the date of the Transaction, the verified weight of the Gold Articles, and their assessed purity in carats.

14.2 Payment shall be made to the Seller in cash or by bank transfer, as mutually agreed and as recorded in the Transaction documents. The Shop shall comply with all applicable cash transaction reporting requirements under the Income Tax Act, 1961, and PMLA, 2002.

14.3 Once the Seller has accepted payment and signed the Transaction documents (or accepted this Agreement electronically), the Transaction shall be deemed complete and final. The Seller shall have no right to claim a higher price or to seek cancellation of the Transaction on grounds of a subsequent change in gold rates.

14.4 In the event that the Gold Articles are seized, attached, or confiscated by any law enforcement or judicial authority on the ground that they are stolen or unlawfully obtained, the Seller shall be liable to refund the full purchase price paid by the Shop, without any deduction, together with interest and any losses suffered by the Shop.

CLAUSE 15 — GOVERNING LAW, JURISDICTION, AND DISPUTE RESOLUTION

15.1 This Agreement and all disputes, differences, claims, or matters arising out of or in connection with it (including its validity, interpretation, performance, breach, or termination) shall be exclusively governed by and construed in accordance with the laws of the Republic of India.

15.2 Subject to Clause 15.3 below, all disputes between the Shop and the Seller shall be subject to the exclusive jurisdiction of the courts of competent jurisdiction in Ranchi, Jharkhand. The Seller irrevocably submits to such jurisdiction and irrevocably waives any objection on the grounds of inconvenient forum, improper venue, or lack of jurisdiction.

15.3 Notwithstanding the above, the Shop reserves the right to take urgent or interim legal action (including seeking injunctions or interim relief) before any court of competent jurisdiction wherever the circumstances so require, without prejudice to Clause 15.2.

CLAUSE 16 — GENERAL PROVISIONS

16.1 Entire Agreement: This Agreement, together with the Seller's sworn Affidavit/Declaration and the KYC documents, constitutes the entire understanding and agreement between the Shop and the Seller with respect to the subject matter hereof and supersedes all prior negotiations, representations, understandings, and agreements, whether oral or written.

16.2 Severability: If any provision of this Agreement is found by any court or competent authority to be invalid, unenforceable, or illegal, the remaining provisions shall continue in full force and effect without being affected or impaired in any manner.

16.3 No Waiver: Failure by the Shop to enforce any provision of this Agreement at any time shall not constitute a waiver of the Shop's rights to enforce such provision in the future.

16.4 Amendment: This Agreement may be amended or updated by the Shop from time to time. The version in force at the time each individual Transaction is completed shall govern that Transaction.

16.5 Language: This Agreement is executed in English. In case of any dispute regarding interpretation, the English text shall prevail. A Hindi summary or translation may be provided for the Seller's convenience, but the English original shall be binding.

16.6 Counterparts and Digital Originals: This Agreement executed via Aadhaar-OTP e-KYC shall be treated as the original signed instrument. The digital record shall have the same legal force as a physical signature for all purposes.

IMPORTANT NOTICE TO SELLER — PLEASE READ CAREFULLY BEFORE PROCEEDING
By entering your Aadhaar OTP and clicking "I AGREE", you are providing your authenticated electronic consent and creating a binding legal agreement. You are confirming that all gold articles you are selling are your lawful property and that all information you have provided is true and complete.
NOTE: Selling stolen property or making a false declaration is a serious criminal offence punishable with imprisonment under the Bharatiya Nyaya Sanhita, 2023.
The Shop has acted in good faith and is fully protected by this Agreement.

ACCEPTANCE AND DIGITAL CONSENT

I, the undersigned Seller, hereby declare that I have carefully and fully read these Terms and Conditions in their entirety. I have had the opportunity to seek independent legal advice. I fully understand the nature, content, and legal consequences of this Agreement, including the declarations, representations, indemnities, and criminal liability provisions contained herein.

I accept and agree to all the clauses of this Agreement freely, voluntarily, and without any duress, coercion, or misrepresentation. I confirm that the gold articles I am offering for sale are my lawful property, and all declarations made by me in this Agreement and in the accompanying Affidavit are true and correct to the best of my knowledge.

My Aadhaar-OTP authentication constitutes my valid and binding electronic signature on this Agreement.

